

ESPA.

Terms of Business (Short Form)

1. Engagement

These Terms of Business apply to all services provided by ESPA (Consultant) to the Client and form part of every offer of service, unless otherwise agreed in writing.

The Consultant's offer of service is valid for 4 weeks from the date of issue unless otherwise stated.

2. Scope of Services

The Consultant will perform the services described in the agreed offer of service with reasonable skill, care, and diligence, in accordance with generally accepted industry standards.

3. Client Responsibilities

The Client must:

- Provide all relevant information required for the services, which is in the Client's power to obtain, in a timely manner
- Ensure information supplied is accurate and complete
- Obtain any necessary third party approvals. The Client shall ensure compliance with the Copyright Act 1994 and identify any proprietary rights held by third parties in any information provided to the Consultant

The Consultant is entitled to rely on information provided by the Client.

4. Fees and Payment

Fees are charged as set out in the offer of service.

All amounts payable by the Client shall be due on the 20th of the month following the month of issue of each invoice, unless otherwise stated.

Interest may be charged on overdue amounts from the date payment falls due until the date of payment, at the rate of the Consultant's overdraft rate plus 2%.

The Client is responsible for all costs of recovery, including legal and debt collection costs.

If the Client fails to pay, the Consultant may suspend services or terminate the engagement.

ESPA.

5. Variations

Any changes to the agreed scope may result in a variation.

The Consultant may issue a variation for additional work or invoice for work outside scope on a time charge basis.

No variation work will commence without agreement from the Client.

6. Suspension and Termination

Either party may suspend or terminate the engagement where the other party is in material breach of these Terms and fails to remedy that breach within a reasonable period after receiving written notice.

On termination, the Client must pay for all work completed to date.

The Consultant is not liable for any resulting delay or loss.

7. Liability

Subject to any contrary provisions in the offer of service, the Consultant's total liability to the Client (whether in contract, tort including negligence, or otherwise) arising out of or in connection with the services is limited to the lesser of five times the value of the fees (excluding GST and disbursements) or \$200,000.

The Consultant is not liable for indirect or consequential loss, including loss of profit, revenue, or opportunity.

Any claim must be made within 6 years of completion of services.

8. Insurance

The Consultant maintains professional indemnity insurance appropriate to the services provided.

9. Intellectual Property

All intellectual property remains with the Consultant.

The Client is granted a licence to use documents only for the specific project.

Use for other purposes requires written consent.

10. Confidentiality

Both parties must keep confidential all commercially sensitive information unless disclosure is required by law.

ESPA.

11. Health and Safety

Each party is responsible for complying with obligations under the Health and Safety at Work Act 2015.

The Consultant does not assume responsibility for site control unless explicitly agreed.

12. Consumer Guarantees Act

Where services are supplied for business purposes, the Consumer Guarantees Act 1993 does not apply.

13. General

These terms are governed by New Zealand law.

All payments shall be made in New Zealand Dollars.

The parties will act in good faith to resolve any dispute and, failing resolution, will refer the dispute to mediation before pursuing any other remedies.

If any provision is invalid, the remainder continues in force.